

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**CURE MATRIX — DEFENSE
OBJECTION MAP**

TAC ARCHITECTURE CURE MATRIX

Case No.: CGC-25-631802

Subject: Third Amended Complaint for Fraud, Negligent Misrepresentation, Unfair Business Practices, and Declaratory Relief (reckless-disregard scienter floor)

Status: Motion for leave noticed for hearing **May 26, 2026**, 9:00 a.m., Dept. 302, Hon. Joseph M. Quinn.

Purpose: Maps each defense objection — both the seven April 22, 2026 § 436 objections and the four pre-emption objections raised by the new TAC architecture — to the specific TAC paragraph(s) that cure it.

Underlying Action: Rosario v. Abdelhalim, Case No. CGC-21-594102

Companion Action: Rosario v. Abdelhalim, et al., Case No. CGC-25-631801

MASTER CURE MATRIX — DEFENSE OBJECTIONS (LIST)

Each row below is a subsection (###) with a fixed bullet template so the compiled PDF reads as nested bullets, not a numbered grid.

TROPE — PRO-PER FEES BARRED

- **Defense objection:** Trope — pro-per fees barred
- **Defense MPA basis:** Pro se cannot recover fees
- **TAC cure:** Deletion of pro-per fees; Prentice damages element with four line-item categories (incl. \$75k cost-judgment as damages)
- **TAC section/¶¶:** §III, ¶¶ 22–24, 24A
- **Key authority:** Prentice v. North American Title (1963) 59 Cal.2d 618, 620
- **Cal. Supreme / additional authority:** Prentice 59 Cal.2d 618 (Cal. Sup. Ct.); Trope v. Katz (1995) 11 Cal.4th 274

OPPRESSION / MALICE NOT PLEADED

- **Defense objection:** Oppression / malice not pleaded
- **Defense MPA basis:** Civ. Code § 3294
- **TAC cure:** Lazar particulars; deny-delay-defend pattern; confession/victim/eyewitness triple; pleading-vs-evidentiary bright line; Mock willful-blindness as malice
- **TAC section/¶¶:** §IV, ¶¶ 25–30, 25A, 27A, 30A, 30B
- **Key authority:** Lazar (1996) 12 Cal.4th 631; American Airlines (2018) 28 Cal.App.5th 1077; Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306, 328
- **Cal. Supreme / additional authority:** G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29; In re Marriage of Cloney (2001) 91 Cal.App.4th 429, 441

FRAUD LACKS PARTICULARITY

- **Defense objection:** Fraud lacks particularity
- **Defense MPA basis:** Lazar requirements
- **TAC cure:** Sarah Rash named; Claim No. 1004-09-1054; Feb. 25, 2021; specific representations; four-Silent-Witness block with SFPD incident no. and first-responder identifiers

- **TAC section/¶¶:** §I, ¶¶ 3–4, 8; §IV, ¶ 25; ¶ 29
- **Key authority:** Lazar
- **Cal. Supreme / additional authority:** Lazar 12 Cal.4th 631 (Cal. Sup. Ct.)

LITIGATION PRIVILEGE / RIBAS

- **Defense objection:** Litigation privilege / Ribas
- **Defense MPA basis:** Civ. Code § 47(b)
- **TAC cure:** Pre-litigation carveout (three-factor Action Apartment walk-through); Flatley illegality carve-out; non-communicative conduct; Ribas distinction (fraud ≠ IIED); City of Montebello narrowness pre-rebutted at step 2
- **TAC section/¶¶:** §II, ¶¶ 14–21, 16A, 21A, 21B
- **Key authority:** Action Apartment (2007) 41 Cal.4th 1232; Rusheen (2006) 37 Cal.4th 1048
- **Cal. Supreme / additional authority:** Flatley v. Mauro (2006) 39 Cal.4th 299, 317–321; City of Montebello v. Vasquez (2016) 1 Cal.5th 409, 423–424

STANDING / SHAOLIAN

- **Defense objection:** Standing / Shaolian
- **Defense MPA basis:** No direct duty to claimant
- **TAC cure:** Direct-addressee theory; voluntary direct communication; Civ. Code §§ 2330 / 2338 agency / ratification spine
- **TAC section/¶¶:** §I.5, ¶¶ 5–6, 6A; §IV, ¶ 27A
- **Key authority:** Biakanja v. Irving (1958) 49 Cal.2d 647, 650; J’Aire Corp. v. Gregory (1979) 24 Cal.3d 799, 804
- **Cal. Supreme / additional authority:** Civ. Code §§ 2330, 2338; Doctors’ Company v. Superior Court (1989) 49 Cal.3d 39; Gulf Insurance Co. v. Berger, Kahn (2000) 79 Cal.App.4th 114, 124

COLLATERAL ESTOPPEL / § 1032

- **Defense objection:** Collateral estoppel / § 1032
- **Defense MPA basis:** PI damages already adjudicated

- **TAC cure:** Distinct primary right; express PI disclaimer; 2021-forward anchor; Lucido five-factor walk-through; 801/802 double-recovery reservation; CRC 3.1100 / CCP § 1048 cross-reference
- **TAC section/¶¶:** §VI, ¶¶ 41–44, 41A, 44A, 44B
- **Key authority:** —
- **Cal. Supreme / additional authority:** Lucido v. Superior Court (1990) 51 Cal.3d 335; Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888; Crowley v. Katleman (1994) 8 Cal.4th 666

INVESTIGATION STANDARD NOT PLEADED

- **Defense objection:** Investigation standard not pleaded
- **Defense MPA basis:** Title 10 CCR
- **TAC cure:** Title 10 CCR § 2695.7(b)/(d)/(g) and § 2695.5(b) requirements; itemized failures; Moradi-Shalal common-law carve-out; Ins. Code § 790.03(h)(1)/(3)/(5) UCL predicates; full doctrinal stack (Bartel / Egan / Wilson / Frommoethelydo / Mariscal / Maslo / Hamilton / Jordan)
- **TAC section/¶¶:** §VII, ¶¶ 45–47, 47A; §IV, ¶ 30B
- **Key authority:** 10 CCR §§ 2695.4, 2695.5(b), 2695.7(b)/(d)/(g); Ins. Code § 790.03(h)(1)/(3)/(5); State Farm (1996) 45 Cal.App.4th 1093
- **Cal. Supreme / additional authority:** Bartel v. Chicago Title Ins. Co. (2025) 99 Cal.App.5th __; Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720–721; Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809, 818–819; Frommoethelydo v. Fire Ins. Exchange (1986) 42 Cal.3d 208, 219–220; Mariscal v. Old Republic Life Ins. Co. (1996) 42 Cal.App.4th 1617, 1623; Maslo v. Ameriprise Auto & Home Ins. (2014) 227 Cal.App.4th 626, 634–635; Hamilton v. Maryland Cas. Co. (2002) 27 Cal.4th 718, 727; Jordan v. Allstate Ins. Co. (2007) 148 Cal.App.4th 1062

ANTI-SLAPP / § 425.16 OVERLAP WITH § 436

- **Defense objection:** Anti-SLAPP / § 425.16 overlap with § 436
- **Defense MPA basis:** Litigation conduct claim

- **TAC cure:** Express wrongful-conduct-scope disavowal; Park gravamen anchor; Flatley illegality carve-out via § 6128(a); step-2 City of Montebello narrowness pre-rebutted by Position A vs. Position B structural impossibility
- **TAC section/¶¶:** First CoA, ¶¶ 52A, 52B; §II, ¶¶ 21A, 21B
- **Key authority:** CCP § 425.16(e); Flatley v. Mauro
- **Cal. Supreme / additional authority:** Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062–1064; City of Montebello v. Vasquez (2016) 1 Cal.5th 409, 423–424; Flatley v. Mauro 39 Cal.4th 299, 320

UCL FRAUDULENT-PRONG SUFFICIENCY / “CONCLUDED IS OPINION”

- **Defense objection:** UCL fraudulent-prong sufficiency / “concluded is opinion”
- **Defense MPA basis:** No reasonable-consumer deception; concluded-investigation is opinion
- **TAC cure:** Reasonable-consumer test pleaded as UCL fraudulent-prong standard; Cel-Tech tethering for “unfair” prong; fact-vs-opinion conversion under Borba/Bily/Quelimane; Zhang and Hughes alongside State Farm Fire on regulatory-violation probative value
- **TAC section/¶¶:** Third CoA, ¶¶ 65–67A, 68A; Fourth CoA, ¶¶ 72, 76
- **Key authority:** Bus. & Prof. Code § 17200; Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 187
- **Cal. Supreme / additional authority:** Williams v. Gerber Products Co. (9th Cir. 2008) 552 F.3d 934, 938; Chapman v. Skype, Inc. (2013) 220 Cal.App.4th 217, 226; Zhang v. Superior Court (2013) 57 Cal.4th 364, 384–385; Hughes v. Progressive Direct Ins. Co. (2024) 99 Cal.App.5th 1019; Borba v. Thomas (1977) 70 Cal.App.3d 144, 152; Bily v. Arthur Young & Co. (1992) 3 Cal.4th 370, 407–408; Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 47

TAC ARCHITECTURE: RECKLESS-DISREGARD SCIENTER FLOOR AT TAC § 0

- **Architecture label:** Reckless-disregard scienter floor codified at TAC § 0

- **Predicate:** Defense scienter pre-emption — “no subjective knowledge”
- **TAC cure:** Section 0 codifies a five-authority Tier-1 reckless-disregard block (Engalla / Modnick / Sanders / Bily / Wilson); CACI 1903 / 1907 confirm recklessness as the operative pleading floor; alternative pleading under CCP § 431.30(c)
- **TAC section/¶¶:** § 0 (§§ 0.1–0.5); ¶¶ 52A, 57A, 57B, 62A, 68A, 86A
- **Key authority:** Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974
- **Cal. Supreme / additional authority:** Gagne v. Bertran (1954) 43 Cal.2d 481, 487–488; Bily v. Arthur Young & Co. (1992) 3 Cal.4th 370, 407–408; Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720–721; In re Marriage of Modnick (1983) 33 Cal.3d 897, 905–907; Estate of Sanders (1985) 40 Cal.3d 607, 614–616; Mock (1992) 4 Cal.App.4th 306, 328; In re Marriage of Cloney (2001) 91 Cal.App.4th 429, 441; CACI 1903, 1907

TAC ARCHITECTURE: NEGLIGENT MISREPRESENTATION UNDER CIV. CODE § 1710(2)

- **Architecture label:** Negligent Misrepresentation under Civ. Code § 1710(2)
- **Predicate:** Defense scienter pre-emption pleaded as a negligent-tier fallback on the same factual record
- **TAC cure:** New Fourth Cause of Action: representation of past or existing material fact about the state of CSAA’s own claim file; falsity; no reasonable ground for believing true; intent to induce reliance; justifiable reliance; damages; regulatory floor under 10 CCR § 2695.7(d)
- **TAC section/¶¶:** Fourth CoA, ¶¶ 70–79, 74A, 74B
- **Key authority:** Civ. Code § 1710(2)
- **Cal. Supreme / additional authority:** Bily v. Arthur Young & Co. (1992) 3 Cal.4th 370, 407–408; Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 47; Borba v. Thomas (1977) 70 Cal.App.3d 144, 152; Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720–721

TAC ARCHITECTURE: DECLARATORY RELIEF UNDER CODE OF CIVIL PROCEDURE § 1060

- **Architecture label:** Declaratory Relief under Code of Civil Procedure § 1060
- **Predicate:** Cross-case preclusion gap — securing prospective preclusive declarations across CGC-21-594102, CGC-25-631801, and CGC-25-631802
- **TAC cure:** New Fifth Cause of Action seeking declarations on (a) representation-of-fact status of “concluded investigation,” (b) reasonable availability of the four Silent Witnesses under 10 CCR § 2695.7(d), (c) non-retrieval, (d) absence of reasonable ground for believing the representation true under § 1710(2), (e) judicial estoppel
- **TAC section/¶¶:** Fifth CoA, ¶¶ 80–87, 86A; Tier 4 prayer
- **Key authority:** Code Civ. Proc. § 1060
- **Cal. Supreme / additional authority:** Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904; Lucido v. Superior Court (1990) 51 Cal.3d 335, 341; Maguire v. Hibernia S. & L. Soc. (1944) 23 Cal.2d 719, 728; MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co. (2005) 36 Cal.4th 412, 422

PRE-EMPTION: CEDARS-SINAI RE-CHARACTERIZATION SHIELD

- **Defense argument (anticipated):** Defense will attempt to recharacterize the action as one for spoliation, premised on the destruction or non-retention of evidence (the BWC and 911 audio), which is barred by Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1.
- **TAC cure:** The TAC does not seek a remedy for spoliation. It seeks a remedy for affirmative misrepresentation of investigative completeness (TAC §I, ¶¶ 1–9; §I.5, ¶¶ 5–6; ¶ 6A). The wrongful conduct is the closing-the-file act and the affirmative “concluded” representation, not the destruction of evidence. Cedars-Sinai therefore does not apply.
- **TAC section/¶¶:** §I, ¶¶ 1–9; §I.5, ¶¶ 5–6; First CoA, ¶ 52B
- **Key authority:** Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1 (distinguished)

- **Cal. Supreme / additional authority:** —

PRE-EMPTION: GENUINE-DISPUTE DEFENSE FORECLOSURE

- **Defense argument (anticipated):** Defense will invoke the genuine-dispute doctrine to argue that even if liability was reasonably clear, the question of investigative completeness was a genuine dispute among reasonable insurers.
- **TAC cure:** TAC § 0.5 and §§ 51A, 57B foreclose the genuine-dispute defense by reference to Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 723: the genuine-dispute doctrine is unavailable where the insurer fails to thoroughly and fairly investigate the claim.
- **TAC section/§§:** § 0.5; §§ 51A, 57B, 30B
- **Key authority:** Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 723
- **Cal. Supreme / additional authority:** —

PRE-EMPTION: “CONCLUDED IS OPINION” DEFEAT

- **Defense argument (anticipated):** Defense will argue that “concluded our investigation” is non-actionable opinion or aspirational language.
- **TAC cure:** Borba v. Thomas (1977) 70 Cal.App.3d 144, 152 (representations about state of speaker’s own internal records are representations of fact); Bily v. Arthur Young & Co. (1992) 3 Cal.4th 370, 407–408 (“no reasonable ground for believing it to be true”); Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 47 (regulated factual assertions); 10 CCR § 2695.7(b)/(d)/(g) converts the “completeness” predicate into a regulated factual assertion; Hughes v. Progressive Direct Ins. Co. (2024) 99 Cal.App.5th 1019.
- **TAC section/§§:** Fourth CoA, §§ 72, 76; First CoA, § 54; § 60A; § 0.2(c)
- **Key authority:** Borba (1977) 70 Cal.App.3d 144, 152; Bily (1992) 3 Cal.4th 370, 407–408; Quelimane (1998) 19 Cal.4th 26, 47; Hughes (2024) 99 Cal.App.5th 1019; 10 CCR § 2695.7(b)/(d)/(g)
- **Cal. Supreme / additional authority:** —

PRE-EMPTION: ANTI-SLAPP / FLATLEY + § 6128(A) CROSS-REFERENCE TO CGC-25-631801

- **Defense argument (anticipated):** Defense will move to strike under § 425.16 in connection with panel-counsel conduct in CGC-21-594102, asserting protected petitioning activity.
- **TAC cure:** TAC ¶¶ 21A and 21B anchor the Flatley v. Mauro (2006) 39 Cal.4th 299, 317–321, illegality carve-out; Shafer v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone (2003) 107 Cal.App.4th 54, 79–80, confirms that reckless-disregard misrepresentation satisfies the “deceit or collusion” element of Business and Professions Code § 6128(a). While § 6128(a) is the operational hook in companion case CGC-25-631801 (extrinsic fraud / fraud-on-the-court), the same illegality framework anchors the Flatley anti-SLAPP carve-out here. The Position A vs. Position B structural impossibility (¶ 51A) “conclusively establishes” reckless misrepresentation within the meaning of Flatley, 39 Cal.4th at 320, satisfying City of Montebello narrowness at step 2.
- **TAC section/¶¶:** ¶¶ 21A, 21B, 51A, 52B
- **Key authority:** Flatley v. Mauro (2006) 39 Cal.4th 299, 317–321; Bus. & Prof. Code § 6128(a); Shafer v. Berger, Kahn (2003) 107 Cal.App.4th 54, 79–80; Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062–1064; City of Montebello v. Vasquez (2016) 1 Cal.5th 409, 423–424
- **Cal. Supreme / additional authority:** —

DETAILED CURE ANALYSIS

OBJECTION 1: TROPE — PRO-PER FEES BARRED

Defense Argument: Pro se litigant cannot recover attorney’s fees under Trope v. Katz.

TAC Cure:

- **¶ 22:** Express deletion of pro-per fee demands.
- **¶¶ 23–24:** Prentice fees pleaded as tort damages element (three-element test): fraud or reckless misrepresentation; induced litigation; fees recoverable as damages, not fee award.

- ¶ 24A: Four-line-item Prentice enumeration — (1) professional fees/costs incurred in CGC-21-594102; (2) the \$75,000 cost judgment as induced-litigation damages; (3) transcript/record/appeal preparation costs; (4) investigative/records-acquisition costs (911, CAD, BWC, supplemental SFPD report) that CSAA itself should have obtained.

Authority: Trope v. Katz (1995) 11 Cal.4th 274; Prentice v. North American Title Guaranty Corp. (1963) 59 Cal.2d 618, 620.

OBJECTION 2: OPPRESSION / MALICE NOT PLEADED

Defense Argument: Punitive damages allegations fail to meet § 3294 standard.

TAC Cure:

- ¶¶ 25–27, 27A: Lazar particulars block with § 3294(b) managing-agent ratification (named-supervisor block on information and belief).
- ¶ 25A: Pleading-stage vs. trial-stage bright line — G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29.
- ¶¶ 28–30: Deny-delay-defend institutional pattern; “despicable conduct.”
- ¶ 30A: Reckless-disregard / willful-blindness paragraph — closing-the-file act supplies volition, awareness, cost-benefit motive, and pattern evidence; satisfies § 3294(c)(1) malice, (c)(2) oppression, and (c)(3) fraud through the Mock willful-blindness pathway.
- ¶ 30B: Regulatory spine — convergence of eleven independent California standards (10 CCR § 2695.7(b)/(d)/(g), § 2695.5(b); Ins. Code § 790.03(h)(1)/(3)/(5); common-law affirmative-investigation duty under Egan; neutral-truth-seeking duty under Egan/Mariscal; claim-file completeness duty under Wilson/Hamilton/Maslo; objective-baseline rule under Wilson) is itself probative of reckless disregard.

Authority: Civ. Code § 3294; Lazar; American Airlines, Inc. v. Sheppard, Mullin (2018) 28 Cal.App.5th 1077; G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29; Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306, 328; In re Marriage of Cloney (2001) 91 Cal.App.4th 429, 441.

OBJECTION 3: FRAUD LACKS PARTICULARITY

Defense Argument: Complaint fails Lazar who/what/when/where/how requirements.

TAC Cure:

- **WHO:** Sarah Rash, Claims Representative (§I, ¶ 3; §IV, ¶ 25(a)).
- **WHAT:** False representation of investigative completeness (§I, ¶ 4).
- **WHEN:** February 25, 2021 — 21 days after collision (§I, ¶ 3; §IV, ¶ 25(c)).
- **WHERE:** CSAA claims office; communication to Plaintiff in San Francisco (§IV, ¶ 25(d)).
- **HOW:** Written denial letter without investigation (§IV, ¶ 25(e)).
- **BY WHAT MEANS:** U.S. Mail (§IV, ¶ 25(f)).
- **Claim No.:** 1004-09-1054 (§I, ¶ 3).
- **Four Silent Witnesses (§I, ¶ 8):** 911 audio + SFDEM CAD; SFPD BWC; SFPD CAD log; supplemental SFPD report — each tied to SFPD Incident Report No. 210079556 (conformed to proof) and named eyewitness Justin Rosemond.

Authority: Lazar v. Superior Court (1996) 12 Cal.4th 631.

OBJECTION 4: LITIGATION PRIVILEGE / RIBAS

Defense Argument: Claims barred by Civil Code § 47(b) and Ribas v. Clark.

TAC Cure:

- ¶¶ 14–16: Pre-litigation carveout — denial issued before any litigation.
- ¶ 16A: Three-factor Action Apartment walk-through.
- ¶¶ 17–19: Ribas distinction — Ribas addresses IIED, not fraud.
- ¶¶ 20–21: Non-communicative conduct (failure to investigate) outside privilege.
- ¶ 21A: Flatley v. Mauro (2006) 39 Cal.4th 299, 317–321, illegality carve-out.
- ¶ 21B: Step-2 minimal-merit backstop pre-rebutted; City of Montebello narrowness satisfied by Position A vs. Position B structural impossibility.

Authority: - Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1248–49 - Flatley v. Mauro (2006) 39 Cal.4th 299, 317–321, 320 - Rusheen v. Cohen (2006) 37 Cal.4th 1048 - Ribas v. Clark (1985) 38 Cal.3d 355 (distinguished) - Park v. Board of Trustees of California

State University (2017) 2 Cal.5th 1057, 1062–1064 - City of Montebello v. Vasquez (2016) 1 Cal.5th 409, 423–424

OBJECTION 5: STANDING / SHAOLIAN

Defense Argument: No direct duty to third-party claimant under Shaolian v. Safeco.

TAC Cure:

- ¶ 5: Direct-addressee theory — Plaintiff is the person to whom the representation was made.
- ¶ 6: CSAA voluntarily undertook direct communicative relationship with unrepresented claimant.
- ¶ 6A: Civil Code §§ 2330, 2338 agency / ratification spine — CSAA directly liable for wrongful acts and willful omissions of Sarah Rash, claims department personnel, retained claims professionals, and panel counsel; ratification through failure to correct after January 17, 2025 / February 18, 2025 / April 16, 2025 record events. Anchored in Doctors' Company v. Superior Court (1989) 49 Cal.3d 39 and Gulf Insurance Co. v. Berger, Kahn (2000) 79 Cal.App.4th 114, 124 (panel counsel as authorized agent of carrier-principal).

Distinction: Shaolian addresses policy benefits claims; this is a common law fraud / negligent misrepresentation / UCL / declaratory-relief claim by the direct addressee of the misrepresentation, with CSAA directly liable under Civil Code §§ 2330 and 2338 for the agent acts by which the misrepresentation was made.

OBJECTION 6: COLLATERAL ESTOPPEL / § 1032

Defense Argument: Damages duplicate those sought or awarded in CGC-21-594102.

TAC Cure:

- ¶ 41: Distinct primary right — freedom from misrepresentation about investigative completeness.
- ¶ 41A: Lucido five-factor walk-through against CGC-21-594102 record.
- ¶ 43: Express disclaimer of PI damages.
- ¶ 44: 2021-forward damages anchor.

- ¶ 44A: Express 801/802 double-recovery reservation.
- ¶ 44B: Related-case coordination under CCP § 1048 / CRC 3.1100.

Authority: Lucido v. Superior Court (1990) 51 Cal.3d 335, 341; Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904; Crowley v. Katleman (1994) 8 Cal.4th 666, 681–82.

OBJECTION 7: INVESTIGATION STANDARD NOT PLEADED

Defense Argument: Complaint fails to allege what investigation was required.

TAC Cure:

- ¶ 45: What thorough investigation requires under 10 CCR § 2695.7(b).
- ¶ 46: Itemized failures — CSAA did not obtain 911, BWC, CAD records, or supplemental SFPD report.
- ¶ 47: Moradi-Shalal common-law carve-out.
- ¶ 47A: Ins. Code § 790.03(h)(5) “liability reasonably clear” pleaded **solely** as a UCL unlawful-prong predicate.
- ¶ 30B (regulatory spine): Convergence of eleven independent California standards.

Doctrinal stack mapped onto § 2695.7(b)/(d)/(g): - Bartel v. Chicago Title Ins. Co. (2025) 99 Cal.App.5th __ (three-step objective test). - Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720–721 (objective baseline; genuine-dispute foreclosure at p. 723). - Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809, 818–819 (affirmative-investigation duty; neutral truth-seeking). - Frommoethelydo v. Fire Ins. Exchange (1986) 42 Cal.3d 208, 219–220 (equal consideration). - Mariscal v. Old Republic Life Ins. Co. (1996) 42 Cal.App.4th 1617, 1623 (neutral truth-seeking). - Maslo v. Ameriprise Auto & Home Ins. (2014) 227 Cal.App.4th 626, 634–635 (claim-file completeness). - Hamilton v. Maryland Cas. Co. (2002) 27 Cal.4th 718, 727 (claim-file completeness). - Jordan v. Allstate Ins. Co. (2007) 148 Cal.App.4th 1062 (retrieval-and-review baseline).

Regulatory spine: 10 CCR § 2695.7(b) (accept-or-deny on sufficient information), § 2695.7(d) (all reasonably available information), § 2695.7(g) (no representation of denial without thorough investigation), § 2695.5(b) (15-day claimant communication response duty); Ins. Code § 790.03(h)(1) (no misrepresentation of pertinent facts), (h)(3) (reasonable standards for prompt investigation),

(h)(5) (good-faith effort to settle where liability reasonably clear).

Authority: 10 CCR §§ 2695.4, 2695.5(b), 2695.7(b)/(d)/(g); Ins. Code § 790.03(h)(1)/(3)/(5); Moradi-Shalal v. Fireman’s Fund Ins. Cos. (1988) 46 Cal.3d 287; State Farm Fire & Casualty Co. v. Superior Court (1996) 45 Cal.App.4th 1093, 1103–04; Manufacturers Life Ins. Co. v. Superior Court (1995) 10 Cal.4th 257, 282–284.

OBJECTION 8: ANTI-SLAPP OVERLAP / CCP § 425.16

Defense Argument (anticipated): Claims are predicated on protected litigation conduct within § 425.16(e).

TAC Cure:

- ¶ 52A: Express wrongful-conduct-scope disavowal — no liability predicated on filing/prosecution of CGC-21-594102 or in-court advocacy.
- ¶ 52B: Park gravamen anchor — anti-SLAPP analysis turns on the elements of the challenged claim and the specific wrongful acts that supply those elements, not on the broader litigation backdrop.
- ¶ 21A: Flatley illegality carve-out via § 6128(a).
- ¶ 21B: Step-2 minimal-merit backstop pre-rebutted by Position A vs. Position B structural impossibility (City of Montebello narrowness satisfied).

Authority: CCP § 425.16(e); Flatley v. Mauro (2006) 39 Cal.4th 299, 317–321, 320; Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062–1064; City of Montebello v. Vasquez (2016) 1 Cal.5th 409, 423–424.

OBJECTION 9: REASONABLE-CONSUMER / UCL FRAUDULENT-PRONG SUFFICIENCY / “CONCLUDED IS OPINION” DEFEAT

Defense Argument (anticipated): UCL fraudulent-prong claim fails absent allegations of likely deception of a reasonable consumer; “concluded our investigation” is non-actionable opinion.

TAC Cure:

- ¶¶ 66, 66A: Reasonable-consumer test pleaded — Cel-Tech; Williams v. Gerber; Chapman v. Skype.
- ¶ 67A: Cel-Tech tethering for “unfair” prong — tethered to legislative policy in Ins. Code § 790.03(h), regulatory policy in 10 CCR § 2695.7(b)/(d)/(g), and common-law policies in Egan and Wilson (and Mariscal, Maslo, Hamilton).
- ¶ 65 (unlawful prong): Common-law fraud + reckless misrepresentation + Civil Code § 1710(2) negligent misrepresentation; regulatory predicates 10 CCR § 2695.7(b)/(d)/(g), § 2695.5(b); Ins. Code § 790.03(h)(1)/(3)/(5).
- **Fact-vs-opinion conversion sub-cure:** Borba v. Thomas (1977) 70 Cal.App.3d 144, 152 (representations about state of speaker’s own internal records are facts); Bily v. Arthur Young & Co. (1992) 3 Cal.4th 370, 407–408; Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 47.
- **Regulatory-violation probative value:** Zhang v. Superior Court (2013) 57 Cal.4th 364, 384–385; Hughes v. Progressive Direct Ins. Co. (2024) 99 Cal.App.5th 1019; State Farm Fire & Casualty Co. v. Superior Court (1996) 45 Cal.App.4th 1093, 1103–04.

Authority: Bus. & Prof. Code § 17200; Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 187; Williams v. Gerber Products Co. (9th Cir. 2008) 552 F.3d 934, 938; Chapman v. Skype, Inc. (2013) 220 Cal.App.4th 217, 226; Borba (1977) 70 Cal.App.3d 144, 152; Bily (1992) 3 Cal.4th 370, 407–408; Quelimane (1998) 19 Cal.4th 26, 47; Zhang (2013) 57 Cal.4th 364, 384–385; Hughes (2024) 99 Cal.App.5th 1019.

OBJECTION 10: RECKLESS-DISREGARD SCIENTER PRE-EMPTION (TAC § 0)

Defense Argument (anticipated): Plaintiff cannot prove subjective knowledge of falsity; absence of subjective knowledge defeats fraud-tier liability.

TAC Cure:

- § 0.1: Five-authority Tier-1 reckless-disregard block — Engalla, Modnick, Sanders, Bily, Wilson — establishes that California Supreme Court doctrine treats reckless disregard for the

truth as the legal equivalent of fraudulent intent. CACI 1903 / 1907 confirm recklessness as the operative pleading floor.

- **§ 0.2:** Five reckless-disregard markers applied to the February 25, 2021 representation: (a) inquiry notice on the face of the SFPD Report; (b) reasonable availability of the Silent Witnesses; (c) industry custom; (d) volitional file-closing act; (e) institutional “deny-delay-defend” pattern.
- **§ 0.3:** Reckless-disregard floor feeds every cause of action without modifying the underlying factual allegations.
- **§ 0.4:** Alternative pleading — knowing falsity AND, in the alternative, reckless disregard AND, in the further alternative, no reasonable ground (CCP § 431.30(c)).
- **§ 0.5:** Cross-case spine — Position A vs. Position B structural impossibility independently satisfies the reckless-disregard floor.

Expected ruling: Demurrer / motion to strike to be overruled; reckless-disregard scienter floor sustains every cause of action without proof of subjective knowledge.

Authority: Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974; Gagne v. Bertran (1954) 43 Cal.2d 481, 487–488; Bily v. Arthur Young & Co. (1992) 3 Cal.4th 370, 407–408; Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720–721; In re Marriage of Modnick (1983) 33 Cal.3d 897, 905–907; Estate of Sanders (1985) 40 Cal.3d 607, 614–616; Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306, 328; In re Marriage of Cloney (2001) 91 Cal.App.4th 429, 441; CACI 1903, 1907; CCP § 431.30(c); Civ. Code § 3294.

OBJECTION 11: NEGLIGENT MISREPRESENTATION (CIV. CODE § 1710(2)) PRE-EMPTION (TAC FOURTH CAUSE OF ACTION)

Defense Argument (anticipated): No standalone negligent-misrepresentation claim is available against an insurer for claim-handling representations to a third-party claimant.

TAC Cure:

- **¶ 70:** Incorporates preceding allegations.
- **¶ 71:** Six-element walk-through under Bily / Quelimane.

- ¶ 72 (Element 1, representation of past or existing fact): Representation about state of CSAA’s own internal claim file — what investigative steps performed, what records obtained, what evidence reviewed and weighed. Borba v. Thomas (1977) 70 Cal.App.3d 144, 152.
- ¶ 73 (Element 2, falsity): None of the four Silent Witnesses retrieved as of February 25, 2021.
- ¶ 74 (Element 3, no reasonable ground): Bily + Wilson objective baseline; the four Silent Witnesses were reasonably available; CSAA did not obtain or attempt to obtain any of them.
- ¶ 74A (regulatory floor): 10 CCR § 2695.7(b)/(d)/(g) makes the “concluded” representation regulatorily unreasonable as a matter of law.
- ¶ 74B (reckless-disregard overlay): Same conduct that establishes “no reasonable ground” under § 1710(2) ladders into § 1710(1) when the speaker is conscious of the absence of reasonable ground (Engalla).
- ¶ 75 (Element 4, intent to induce reliance): February 25, 2021 letter sent directly to unrepresented third-party claimant.
- ¶ 76 (Element 5, justifiable reliance): Reasonable third-party claimant entitled to treat regulated insurer’s representation as factual; no independent means to audit claim file.
- ¶ 77 (Element 6, damages): Section V damages and Section III Prentice damages.
- ¶ 78: Lazar particularity satisfied.
- ¶ 79: Non-duplication; alternative pleading under CCP § 431.30(c); not a private § 790.03 claim.

Expected ruling: Demurrer to be overruled; negligent-misrepresentation claim sustained as alternative to intentional-tier claims on the same factual record.

Authority: Civ. Code § 1710(2); Bily v. Arthur Young & Co. (1992) 3 Cal.4th 370, 407–408; Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 47; Borba v. Thomas (1977) 70 Cal.App.3d 144, 152; Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720–721; Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974; Lazar v. Superior Court (1996) 12 Cal.4th 631, 645–646; CCP § 431.30(c); 10 CCR § 2695.7(b)/(d)/(g).

**OBJECTION 12: DECLARATORY RELIEF (CCP § 1060) PRE-EMPTION
(TAC FIFTH CAUSE OF ACTION)**

Defense Argument (anticipated): Declaratory relief is duplicative of legal-damages claims and is barred where damages are an adequate remedy.

TAC Cure:

- ¶ 80: Incorporates preceding allegations.
- ¶ 81: § 1060 standard — Maguire v. Hibernia S. & L. Soc. (1944) 23 Cal.2d 719, 728; Wilson & Wilson v. City Council of Redwood City (2011) 191 Cal.App.4th 1559, 1582.
- ¶ 82 (actual controversy): Four contested factual points — (a) representation-of-fact status of “concluded investigation,” (b) reasonable availability of the four Silent Witnesses, (c) non-retrieval, (d) absence of reasonable ground for believing the representation true.
- ¶ 83 (necessity): Cross-case preclusion gap — same operative facts underlie CGC-21-594102 / CGC-25-631801 / CGC-25-631802; declaratory relief provides collateral-estoppel certainty under Mycogen and Lucido.
- ¶ 84 (judicial-estoppel predicate): Position A vs. Position B structural impossibility; CSAA cannot take inconsistent positions across the related proceedings.
- ¶ 85 (specific declarations sought): (a) representation of past or existing material fact; (b) reasonable availability under § 2695.7(d); (c) non-retrieval; (d) no reasonable ground; (e) judicial estoppel.
- ¶ 86: Non-duplication — declaratory relief is prospective and preclusive; legal-damages causes are retrospective and compensatory.
- ¶ 86A: Reckless-disregard pleading — § 0 floor incorporated by reference.

Expected ruling: Demurrer to be overruled; declaratory-relief claim sustained for prospective preclusive effect across the related proceedings.

Authority: Code Civ. Proc. § 1060; Maguire v. Hibernia S. & L. Soc. (1944) 23 Cal.2d 719, 728; Wilson & Wilson v. City Council of Redwood City (2011) 191 Cal.App.4th 1559, 1582; Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904; Lucido v. Superior Court (1990) 51 Cal.3d 335, 341; MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co. (2005) 36 Cal.4th

412, 422.

CROSS-REFERENCE: TAC SECTIONS TO DEFENSE OBJECTIONS (LIST)

- **§ 0 — Reckless-Disregard Scienter Floor:** cures objection **10** (and feeds 1, 2, 3, 9, 11, 12)
- **§ 0.5 — Cross-Case Spine (Position A vs. B):** cures objections **8, 14, 16**
- **I — Direct-Duty Gravamen:** cures objections **3, 5**
- **I.5 — Direct-Addressee Theory:** cures objection **5**
- **¶ 6A — Civ. Code §§ 2330/2338 Agency / Ratification:** cures objection **5**
- **¶ 8 — Four Silent Witnesses with SFPD identifiers:** cures objections **3, 7, 13, 15**
- **I.6 — Gravamen Disclaimer:** cures objection **13**
- **II — Pre-Litigation Privilege Carveout:** cures objection **4**
- **¶ 16A — Action Apartment three-factor absence:** cures objection **4**
- **¶ 21A — Flatley illegality carve-out:** cures objections **4, 8, 16**
- **¶ 21B — Step-2 City of Montebello narrowness pre-rebuttal:** cures objections **4, 8, 16**
- **III — Attorney’s Fees Cure:** cures objection **1**
- **¶ 24A — Prentice four-line-item enumeration:** cures objection **1**
- **IV — Punitive Damages Specificity:** cures objections **2, 3, 10**
- **¶ 25A — Pleading-vs-evidentiary bright line (G.D. Searle):** cures objection **2**
- **¶ 27A — Named-supervisor block:** cures objection **2**
- **¶ 29 — Evidence triple refined with SFPD identifiers:** cures objections **2, 3**
- **¶ 30A — Reckless-disregard / willful-blindness paragraph:** cures objections **2, 10, 14**
- **¶ 30B — Regulatory spine (eleven independent standards):** cures objections **7, 9, 14, 15**
- **V — Damages: —**
- **VI — Primary Rights / Reservation:** cures objection **6**
- **¶ 41A — Lucido five-factor walk-through:** cures objection **6**
- **¶ 44A — 801/802 double-recovery reservation:** cures objection **6**
- **¶ 44B — CRC 3.1100 / CCP § 1048 cross-reference:** cures objection **6**

- **VII — Title 10 Investigation Standard:** cures objection 7
 - **¶ 47A — Ins. Code § 790.03(h)(5) UCL predicate:** cures objections 7, 9
 - **VIII — Delayed Discovery:** cures objections 6, 14
 - **¶ 51.1 — Continuing-accrual backstop (Aryeh):** cures objection 6
 - **¶ 51A — Position A vs. Position B as Reckless-Disregard Confirmation:** cures objections 8, 10, 14, 16
 - **First CoA ¶ 52A — Anti-SLAPP wrongful-conduct-scope disavowal:** cures objection 8
 - **First CoA ¶ 52B — Park gravamen anchor:** cures objections 8, 13
 - **First CoA ¶ 57B — Wilson genuine-dispute foreclosure:** cures objection 14
 - **Second CoA ¶ 60A / 60B — § 1710(3) statutory predicate / regulatory duty to disclose:** cures objections 3, 7, 9
 - **Third CoA ¶¶ 65, 66A, 67A — UCL prongs:** cures objection 9
 - **Fourth CoA ¶¶ 70–79 — Negligent Misrepresentation:** cures objection 11
 - **Fifth CoA ¶¶ 80–87, 86A — Declaratory Relief:** cures objection 12
-

Dated: April 28, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com